

the husband, who is a stranger, and the safest course would be to pay the money into some responsible bank in the joint names of the trustees (excluding the husband), and to take a written receipt from the trustees, to be also signed by the husband as sanctioning the receipt by the wife (*d*). [The concurrence of the husband may however be dispensed with if he has abjured the realm or is an outlaw (*e*), and where a married woman who is a trustee sues under Order 16, Rule 16, without her husband, she can give a good discharge for the money recovered under the judgment without his concurrence (*f*). And where the marriage has taken place since the 31st December, 1882, or the trust has been undertaken by the married woman since that date, she can sign a receipt for the money, without the concurrence of her husband who is not answerable for her acts unless he intermeddled in the trust (*g*).]

26. **Solicitor receiving purchase-money.** — If the trustees of an estate bound by a contract for sale of a date prior to the trust deed execute a conveyance to the purchaser and sign a receipt indorsed, and leave the deed in the hands of the solicitor of the settlor who had contracted to sell, and the solicitor completes the sale and receives the purchase-money and misapplies it, the trustees are personally liable to [*475] the *cestuis que * trust*, as having improperly enabled the solicitor of a third person to get possession of the fund (*a*).

27. **Practical directions where no power to sign receipts.** — The following observations of Lord St. Leonards upon the subject of trustees' receipts, deserve every attention. "Where," he says, "a purchaser is bound to see the money applied according to the trust, and the trust is for payment of *debts or legacies*, he must see the money actually paid to the creditors or legatees. In cases of this nature, therefore,

[(*d*) See *Kingsman v. Kingsman*, 6 Q. B. D. 122, 128, 131.]

[(*e*) *Per* Lord Selborne, L. C., *Kingsman v. Kingsman*, 6 Q. B. D. 122, 128.]

[(*f*) *Kingsman v. Kingsman*, *ubi supra*.]

[(*g*) 45 & 46 Vict. c. 75, ss. 1, 2, 5, 24; see *ante*, p. 36.]

(*a*) *Ghost v. Waller*, 9 Beav. 497; and see *Wood v. Weightman*, 13 L. R. Eq. 434; *West v. Jones*, 1 Sim. N. S. 205.